Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held Electronically Tuesday, November 8, 2022

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 9:31 a.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Delegations and Presentations

3.1 Delegation: By-law to Name a Private Road

Alexander Suriano, Partner, Aird & Berlis LLP, spoke on behalf of Village Creek Developments Incorporated (Village Creek) regarding By-law 66-2022, a by-law to name a private road. A. Suriano discussed background information related to the development project, subject lands, and limited use of the private road. A. Suriano noted that Village Creek proposed naming the road “Manhattan Place” and provided rationale for the proposed name, noting that it is an opportunity for the Town to recognize indigenous heritage and culture. A. Suriano referenced the Town’s street-naming policy citing exemptions to the Town policy, the Town’s Diversity and Community Engagement Plan including recommendations to review the street-naming policy, and public notice requirements. A. Suriano urged Council to abstain from adopting By-law 66-2022 in its current form but rather engage in discussions with Village Creek regarding the naming of the private road.

Council Members asked questions regarding historical street-naming conventions adopted by Village Creek, the Town’s street-naming approval process, plans to review the Town’s street-naming policy, location of the subject lands, and construction timelines. A. Suriano responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked A. Suriano for the presentation.

4. Reports

Mayor Collier vacated the Chair. Regional Councillor Crawford assumed the Chair.

4.1 CAO-2022-13: 27 Station Street Lease Agreement

Samantha Paterson, Government Relations & Strategic Initiatives Coordinator, reviewed the contents of the written report and recommendations contained therein.

Council Members asked questions regarding communication strategies, opportunities to connect with Community Development Council Durham (CDCD), project timelines, priority sheltering, term of the rental agreement, emergency sheltering initiatives in the Town of Whitby, costs to the Town, opportunities to collaborate with existing homelessness programs and services, construction timelines, occupancy date, and support from Durham

Regional Police Service. S. Paterson responded to questions from Council Members.

Moved by: S. Collier
Seconded by: J. Dies

1. That Council approve in principle the draft Lease Agreement for 27 Station Street (ATT-1)

2. That the Mayor and Clerk be authorized to execute the agreement once finalized.

CARRIED

Mayor Collier resumed the Chair.

5. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

5.1 Amendments to the Council Code of Conduct

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked what penalties are available when a Council Member is found to have breached the Code of Conduct. Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to the question from Council Members.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS section 223.2 (1) of the Municipal Act, 2001, requires municipalities to establish codes of conduct for members of the council of the municipality and of its local boards;

AND WHEREAS the Town of Ajax Code of Conduct for Members of Council ("Code of Conduct") was last revised on September 21, 2020;

AND WHEREAS certain amendments to the Code are desired in order to clarify and strengthen the expectation of Members of Council;

NOW THEREFORE BE IT RESOLVED THAT:

The Code of Conduct be amended as follows:

1. Amend Sec. 4.1.7 as follows: [each member shall…] refrain from making any statement known to be false or with the intent to mislead **or disparage** other Members, Staff, Local Board Members, or the public;

2. Amend Sec. 5.4.1 as follows: [members shall not…] publicly criticize a member of Staff **or another member of Council**;

3. Amend Sec. 5.4.2 as follows: [members shall not…] falsely or maliciously injure the reputation of any member of Staff **or Council**, whether professional, ethical, or otherwise;

4. Amend Sec. 6.4 as follows: Members shall not make comments or conduct themselves in any manner that is or ought reasonably to be known to be discriminatory to any individual based on the individual's race, colour, ancestry, citizenship, ethnic origin, place of origin, creed or religion, gender, gender identity, gender expression, sexual orientation, marital status, family status, disability, age, **socioeconomic status** or record of offences;

5. Amend Sec. 8.6.1 as follows: [When communicating on Social Media, members shall not…] be false or with the intent to mislead **or disparage** other Members, Staff, Local Board Members, or the public;

6. Amend Sec. 8.6.2 as follows: [When communicating on Social Media, members shall not…] be discriminatory to any individual based on the individual's race, colour, ancestry, citizenship, ethnic origin, place of origin, creed or religion, gender, gender identity, gender expression, sexual orientation, marital status, family status, disability, age, **socioeconomic status** or record of offences;

7. Amend Sec. 8.7 as follows: Nothing in this Code prevents a Member from operating personal Social Media accounts that do not serve the purpose of representing the Member to the public in their official capacity as a Member. **However, member behavior must still conform to the Council Code of Conduct even while using unofficial or personal Social Media Accounts**;

8. Amend Sec. 11.6 a follows: Members shall respect the right to confidentiality and privacy of all clients, volunteers**, other council members**, and staff, and should be aware of their responsibilities under applicable legislation, municipal policies, procedures and rules, ethical standards and, where appropriate, professional standards;

AND THAT the necessary amending by-law to the Code of Conduct be presented to Council for approval.

CARRIED

Mayor Collier resumed the Chair.

Recorded Vote

In Favour: Councillor Tyler Morin, Councillor Bower, Mayor Collier, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee

Opposed: None

Mayor Collier resumed the Chair.

6. By-laws

Council Members asked questions regarding the street-naming approval process, authority to name private roads, and historical naming practices for private roads in Ajax. Eric Simpson, Senior Planner, responded to questions from Council Members, noting that a municipality may name or change the name of a private road after giving public notice of its intention to pass a by-law, in accordance with the Municipal Act, 2001, Section 48 (Naming Private Roads).

Members requested that the question be divided and that by-law 66-2022 be voted on separately.

Motion 1

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 65-2022 be read a first, second and third time and passed.

CARRIED

Motion 2

Moved by: S. Lee
Seconded by: R. Tyler Morin

That By-law number 66-2022 be read a first, second and third time and passed.

CARRIED

7. Confirming By-law

Moved by: R. Tyler Morin
Seconded by: A. Khan

That By-law number 67-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on November 8, 2022 be read a first, second and third time and passed.

CARRIED

8. Adjournment

Moved by: A. Khan
Seconded by: J. Dies

That the November 8, 2022 special meeting of the Council of the Town of Ajax be adjourned. (10:30 a.m.)

CARRIED

_____
Mayor

_____
D-Clerk